

such grievances have ended happily at the court's intervention. If Mumbai does not have bandhs now, it's not thanks to the Congress-NCP ministers but because in 2005, a court ruled bandhs by political parties as illegal.

It wouldn't be an exaggeration to say that the Bombay High Court is Chief Minister Ashok Chavan's and the Cabinet's new boss. With over a hundred PILs being filed against the state government every year, courts are now emerging as a super government, forcing ministers and bureaucrats to respond to public concerns in real time.

Given that the state's Cabinet ministers are either enacting laws that can fetch them hefty subsidies for making liquor out of "poor quality" grain or playing linguistic politics, the time for serious lawmaking is missing. The Government seems to have little interest in public welfare or in enforcing the policy on hawkers and preventing slum rehabilitation on reserved land. Even prisoners are demanding early release as the Government can't provide healthcare within the state's jails. In response to a PIL filed by an AIDS-infected prisoner on the poor medical facilities in prisons, Justice S.C. Dharmadhikari

IN 1998, MUMBAI HAD 12 LAKH HAWKERS DESPITE A LAW RESTRICTING THEIR ACTIVITIES



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IT TOOK A PIL TO REVEAL THAT HEMANT KARKARE'S BULLET-PROOF JACKET WAS MISSING

on January 6, 2010, told the Government: "Two HIV-positive prisoners have expired due to lack of medication in jail. This is a serious issue; I do not appreciate this. The highest officers of the government have been summoned by this court, but these issues keep surfacing."

The high court has hauled up the Government on several issues. It was only after social activist Sanjay Daundkar filed a PIL seeking to know the quality of bullet-proof jackets issued to the police that it came to

light that the Government had lost the bullet-proof jacket worn by chief of the state's Anti-Terror Squad Hemant Karkare. While a verdict is pending, the court has asked the Government to file a reply to the PIL on how the file disappeared. Former IPS officer and advocate representing Daundkar, Yogendra Pratap Singh, says that immediately after 26/11 it was known that Karkare's jacket had been stolen. The police did not even register an FIR; accountability has been pinned only after the petition.

Explaining the reason behind the spate of PILs against the Government, Singh says, "The main reason for PILs is that the executive regards it as their unbridled prerogative to transgress laws. More than that, when someone solicits remedial action against such violations before the administrative authorities, there is complete inaction." The biggest issue is the complete lack of any redressal system within the Government. Despite FIRs, investigations don't move forward till a court directs the highest police official.

The state Government does nothing to implement laws and regula-